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File No.: PS/00554/2022

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the claimant), on December 13, 2021, filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against Mr. B.B.B., with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

Mr. B.B.B. published a thread on his Twitter profile related to the "case ***C.C.C.". In his tweet published as number XX, the name and surname of the minor child of ***C.C.C. appear, concerning the analysis of possible sexual abuses suffered by the minor.

The URL of the tweet is:

- ***URL.1

SECOND: On December 15, 2021, in accordance with Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the complaint filed by the claimant was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

During the investigative actions, the claimed facts were verified, finding the name and surname of the minor in the following tweet:

- ***URL.1

For the respondent, a provisional urgent content removal measure was issued on December 15, 2021, in such a way as to prevent access and disposal by third parties.

On January 11, 2022, this Agency received a document sent by the respondent, which states that the aforementioned tweet was voluntarily deleted shortly after its publication.

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It also states that the screenshot in which the name and surname of the minor appeared "was not content created by the declarant, but was incorporated from a news article generated by the newspaper 'PÚBLICO'. It continues to indicate that, to that news, the media attached screenshots of judicial reports, from which personal data were redacted, although in one the name and surname of the minor were left, which caused, according to the respondent, the defective publication of the name and surname of the minor to go unnoticed.

The respondent attached to his document:

- A copy showing that tweet number XX of the respondent's thread has been deleted.
- A full copy of the news visible at URL ***URL.2
- Two tweets disseminating the news "The lies of D.D.D., the judge who prevents ***C.C.C. from leaving prison"
- Tweet number XX of the thread that the respondent published on December 12, 2021.
- Retweets from the respondent's thread.

On January 19, 2022, it was verified that the tweet had been deleted.

FIFTH: On November 23, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

The aforementioned initiation agreement, with a registration date of the AEPD of November 24, 2022, was notified to the respondent, in accordance with the rules established in the LPACAP, on December 20, 2022.

SIXTH: With a postal stamp date of December 30, 2022, the respondent requested a copy of the file, as well as an extension of the deadline to submit allegations.

The copy of the file along with the extension of the deadline to formulate allegations was notified to the respondent on January 17, 2023.

SEVENTH: With an entry date in the AEPD registry of January 5, 2023, the respondent submitted a document of allegations in which, in summary, states:

1.- The expiration of the procedure, in accordance with Article 67.2 of the LOPDGDD and Article 122.4 of Royal Decree 1720/2007, of December 21, since "from the admission of the complaint for processing, on December 15, 2021, until the notification of the initiation agreement of the sanctioning procedure, on December 20...

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of December 2022, more than twelve months have passed, and the prior actions must be understood as expired."

2.- The

"prescription of the claimant's actions."

The responding party considers that "there is a lack of proportionality in the proposed sanction (...), and it is not only appropriate to dismiss any infringing conduct by my client but, in a subsidiary case, to consider it as a minor infringement.

- If this were to be considered as we request in a subsidiary manner due to the lack of appreciation of any infringement, the prescription period set forth in the same Law would be that of its article 74, which is 1 year."

Furthermore, it points out that "the LOPDGG does not contain any specific rule regarding the moment from which the prescription period for infringements should begin to be counted, so it is accepted by jurisprudence that the prescription period begins to be counted from the day the infringement was committed. It should also be noted that article 30.2 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, establishes that the prescription period for infringements will begin to be counted from the day the infringement was committed, and that in the case of continuous or permanent infringements, the period will begin to run from when the infringing conduct ended."

It indicates that "The thread of tweets that is the subject of this case occurred on December 12, 2021, and the prior actions of this procedure took place on December 15, 2021, with the complaint filed on December 13 of the same year.

- Since more than 6 months have passed since the prior actions were initiated for reasons not attributable to me, whose 6-month period is set by article 75 of the same Law for the interruption of the prescription, it is clear that the prescription period should be computed from the date of the complaint filed by the responding party, that is, December 29, 2021, so that, having passed more than a year and in the event that it were considered (as would be more proportional and in accordance with the law) a minor infringement, on December 29, 2022, the infringement should be considered prescribed."

3.- Consent of the data subject that excludes the occurrence of an infringement, as the responding party states, "Since the beginning of the judicial dispute, the parents have disclosed their children's personal data in numerous media, expressly and unequivocally consenting to the knowledge of their identities."

To this end, the responding party refers to a series of web links regarding the mentioned circumstance,

as well as various web links in which, according to the responding party, “the major media outlets have also disseminated them massively.”

It considers that “In the case of data concerning minor children, the consent for the processing of such data corresponds to the parents, in accordance with article 8-1.

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of the GDPR and with Article 3-2 of Organic Law 1/1982. Therefore, having made declarations and affirmative actions by the parents regarding the dissemination of such data, there would have been specific consent for the use of such data by the media and all types of users in the public space.”

Criticizes that the initiation agreement of the sanctioning procedure invokes STC 134/1999, of July 15, as we are faced with a different factual situation, since in the case of the aforementioned ruling “the dissemination was not carried out by the parents, but by the affected media.”

Points out that “Once the parents have made that disclosure and accepted the treatment of the minors' names by the media, it makes no sense for each media outlet or each user of social networks to have to obtain authorization for each news item published that includes the identity of the minors. The authorization of the parents has already been given.”

For the reasons stated, concludes that “we are dealing with a lawful data processing, as it has been consented to by the holders.”

Considers it “advisable, to avoid confusion, in reference to the context in which the name of the minor appears in this case, in the context of an expert report. This is a matter that would not affect the data regarding the name (for which prior dissemination by the parents has occurred), but rather the right to privacy in relation to the information in that report.” Which, the claiming party points out, is not within the competence of the AEPD.

The responding party understands that it is necessary to separate “between the legal protection of data and, on the other hand, morality and good practices,” which, it states, made it seem “reasonable that the newspaper 'Público' had seemingly anonymized the report, from that perspective of good practices, regardless of the consent of the parents. And, upon confirming that an error had occurred on the part of 'Público' in the anonymization, it proceeded to immediately remove the affected tweet.”

4.-

“The right to data protection and the lawfulness of the processing carried out by the sanctioned party.”

The responding party considers that the processing carried out is lawful in accordance with Article 6 of the GDPR.

Criticizes that the following circumstances have not been taken into account:

- According to the responding party, it removed “spontaneously, unilaterally, and voluntarily” tweet no. XX, before the notification of the urgent removal request of the content, so it considers that “regardless of the absolute good faith demonstrated by me, the possible public exposure of the personal data has been minimal.”
- Indicates that it has retweeted the partial content of information published in a digital media outlet, so it understands that “As a Twitter user, I am not responsible for the dissemination of this specific news, including the report or partial document attached to it. The responsibility would lie with the media outlet.”
- Points out that the context of the publication must also be taken into account, as it is a news item published by a media outlet that “has had enormous public repercussions, as well as evident informational interest.”
- States that “in the thread of tweets made and written by me, at no time are the data of the minor provided.”
- Considers that “the name of the minor that was inadvertently leaked in the document published by the digital media is barely visible. Therefore, there are not sufficient elements to make the minor identifiable.”

For the reasons stated, the responding party understands that it cannot be held responsible for excessive processing, given that it has complied with “the obligations set forth in the GDPR, and in accordance with the provisions of Article 6 of the aforementioned law.”

5.-

“Fundamental right to freedom of information and right to privacy and right to the protection of personal

data.”

The responding party considers that “a user of a social network should not be required to verify the news subject to retweet, nor to conduct a thorough analysis of its informational content, as we would be facing an absolutely disproportionate demand, nor can the informational interest and public relevance of this information be questioned.”

Refers to the special protection that the right to freedom of information holds in our legal system, and then refers to the limits of such right that the Constitutional Court has progressively outlined, citing various rulings in this regard. This leads it to conclude that “the intrusion into the fundamental rights of third parties resulting from the exercise of freedom of information will be legitimate to the extent that the impact on those rights is adequate, necessary, and proportionate for the constitutional realization of the right to freedom of information and expression.”

Points out that in the present case:

- “It is indisputable that the information being transmitted is true and has evident public significance.”
- “It is indisputable that the informational treatment I carried out has been absolutely respectful of the protagonists of the judicial process, as no personal data of the minors was provided in the thread of tweets in which I expressed a legal opinion, nor, of course, has it exceeded the informational purpose in its dissemination.”
- “The disclosure of the personal data for a very brief period of time, until I voluntarily removed it from the thread, has been permitted and endorsed by the parents over the past few years.”

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- “It is necessary to take into account that the name and surname of the minor, as well as the judicial document, have been disseminated by other media outlets and tens of thousands of social media users, with the same treatment.”

For all these reasons, it concludes by stating that “if the minor is identifiable, it will be due to the violation of other circumstances, such as the various interviews granted by the parents themselves in numerous media outlets, in which they provided data about the minors, making them recognizable individuals, having given their express consent for the data provided in those interviews voluntarily.”

6.- Violation of the principle of equality enshrined in Article 14 of the Spanish Constitution, as the claimant indicates that the news published by “Público” was disseminated by numerous social media users.

7.- Violation of the principles of proportionality and typification of the infringement. The responding party points out that, although it has not violated Article 5 of the GDPR, if the contrary is understood, “the proposed sanction would be clearly inappropriate, as it would violate the principle of typification because the sanction could never be classified as very serious, but at most as minor.”

It understands that “in order to determine any possible sanction (...), one must adhere to the provisions of Article 76 of the LOPDP:

“The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the grading criteria established in paragraph 2 of the aforementioned article.”

It transcribes Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, after which it concludes that in the present case (i) there has been no intent whatsoever (ii) negligence cannot be invoked since, the responding party states, it proceeded to immediately remove the tweet prior to any notification from the AEPD, and (iii) it is “impossible to attribute any harm to me, especially since the same data had already been disseminated previously not only by multiple public figures and anonymous citizens but even by their relatives and the vast majority of the media in our country.”

For the reasons stated, it considers that “The proposed sanction is not appropriate either to the supposed seriousness of the alleged infringing act, nor is it suitable, nor is it necessary.”

It also criticizes that “the proposed sanction does not mention or assess any of the elements that operate in favor of the conduct of the signatory,” specifically referring to:

- That there is no prior infringement that has been committed.
- The lack of intent.
- That he is not a person with a professional activity dedicated to data processing.
- The immediate and spontaneous removal of the tweet, the cooperation shown "by communicating to the AEPD the origin of the aforementioned screenshot to mitigate possible adverse effects."
- No harm has been caused "since it concerns data related to a name already known in the public space."
- The absence of personal or economic benefit from this matter.

It concludes its writing by requesting the opening of a probative period consisting of issuing "a notice to Twitter Spain (...) in order to certify the day and time when the deletion of tweet no. XX, subject of the present procedure of the thread (...) was carried out and to state that no request was directed to the declarant for its elimination."

EIGHTH: On January 26, 2023, the responding party, following the receipt of the copy of the file and the granting of an extension of the deadline to submit allegations, presents an additional writing to the allegations already made.

In summary, it refers to the violation of the principles of proportionality and typification of the infringement "for not taking into account the circumstances observed both by the complainant and by the instructor of the prior investigation proceedings."

It points out that in the report of prior investigation proceedings, the following is indicated:

"SIGNIFICANT EVIDENCE FOR GRADUATION

It should be clarified that the document in which the minor's data appeared, published by the magistrate, had been partially anonymized by him, so one might think, once the diligence in anonymization is observed, that the minor's data went unnoticed by the magistrate in this operation and were revealed by mistake."

While, the responding party warns, it is indicated in the complaint that "B.B.B. has published (unintentionally, I understand)..."

For this reason, the responding party considers that "This evidence noted by the instructor of the prior proceedings has not been taken into account in the resolution of the initiation of the sanctioning file to mitigate the possible sanction, violating the right to the absence of administrative liability, since, despite the total absence of responsibility in the matter at hand, if the contrary is understood, the proposed sanction is not appropriate to the supposed seriousness of the act, nor in any case would it be suitable or necessary."

NINTH: On May 10, 2023, a proposal for resolution was made, proposing that by the Director of the Spanish Agency for Data Protection...

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Archive the sanctioning procedure initiated against Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

After notifying the proposed resolution in accordance with the rules established in the LPACAP, the respondent has not submitted any written allegations.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is established that in December 2021, the respondent published the name and surname of the minor child of ***C.C.C. in the following tweet:

- ***URL.1

SECOND: On December 13, 2021, the complainant filed a complaint with the Spanish Data Protection Agency indicating that the respondent had published a thread related to the "case ***C.C.C." on their Twitter profile, and that in their tweet published as number XX, the name and surname of the minor child of ***C.C.C. appeared, related to the analysis of possible sexual abuses suffered by the minor.

The complainant indicates that the URL of the tweet is ***URL.1

THIRD: On December 28, 2021, a precautionary measure for the urgent removal of the full name of the minor D.D.D. from the address ***URL.1 (tweet number XX) was notified to the respondent.

FOURTH: On January 11, 2022, a letter was received at this Agency from the respondent informing that the aforementioned tweet was voluntarily deleted shortly after its publication.

FIFTH: It is proven in the report of prior investigation actions dated October 3, 2022, that on January 19, 2022, it was verified what the respondent stated in their letter of January 11, 2022, namely, it was confirmed that at the address ***URL.1, tweet number XX had been deleted.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The respondent begins their allegations to the initiation agreement indicating that the procedure has expired, in accordance with Article 67.2 of the LOPDGDD and Article 122.4 of Royal Decree 1720/2007, of December 21, since "from the admission of the complaint on December 15, 2021, until the notification of the initiation agreement of the sanctioning procedure on December 20, 2022, more than twelve months have passed, and the prior actions must be considered expired."

Article 67.2 of the LOPDGDD states that "The prior investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not last longer than twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Data Protection Agency acts on its own initiative or as a result of communication sent by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

In this case, it is established that the admission of the complaint took place on December 15, 2021, and that the notification of the initiation agreement of the sanctioning procedure took place on December 20, 2022, that is, more than twelve months, so the prior investigation actions must be considered expired.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ARCHIVE the sanctioning procedure initiated against Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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